Office of Information Technology Services

State Capitol P.O. Box 2062
Albany, NY 12220-0062
www.its.ny.gov

New York State Information Technology Policy	**No:** NYS-P08-002
IT Policy: **Authority to Establish Enterprise Information Technology Policies, Standards, and Guidelines**	**Updated:** 02/08/2024 **Issued By:** NYS Office of Information Technology Services **Owner:** Division of Legal Affairs

1.0 Purpose and Benefits

This policy communicates the authority of the New York State Office of Information Technology Services (ITS) to oversee, direct, and issue information technology policies, standards, and guidelines.

Information technology policies, standards, and guidelines seek to:

- Promote innovation and deliver cost-effective IT solutions;
- Ensure adherence to the principles governing State information technology enterprise architecture and project management practices;
- Ensure consistency in common technical standards and State Information Technology Resources;
- Protect and secure State Information Technology Resources and data;
- Streamline the State's procurement and deployment of IT systems and infrastructure;
- Streamline the delivery of information or services by promoting consistency in handling, collecting, transporting, transferring, and storing data;
- Promote short or long term cost savings by reducing duplication of spending and achieving greater economies of scale across State Information Technology Resources; and
- Create value for IT investments to better serve citizens, businesses, State Entities, and those who visit the State of New York websites.

2.0 Authority

Section 103(10) of the State Technology Law provides ITS with the authority to establish statewide technology policies, including technology and security standards. *Section 2 of Executive Order No. 117*[1], established January 2002, provides the State Chief Information Officer with the authority to oversee, direct and coordinate the establishment of information technology policies, protocols and standards for State government, including hardware, software, security and business re-engineering.

3.0 Scope

This policy applies to all "State Entities" (SE), defined as "State Government" in Executive Order 117 or "State Agencies" as defined in Section 101 of the State Technology Law. This includes employees and all third parties (such as local governments, consultants, vendors, and contractors) that use or access any Information Technology (IT) Resource for which the SE or ITS has administrative responsibility, including systems managed or hosted by third parties on behalf of the SE or ITS.

As part of the Policy and Standard development process, ITS reserves the right to collect any information regarding the use of information technology by New York State government entities.

4.0 Information Statement

The authority for ITS to oversee, direct, and issue policies, standards, and guidelines is provided by the State Technology Law, NYS Executive Order No. 117, and Title 6, Section 665 of the United States Code.

4.1 State Technology Law

Section 103(10) of the State Technology Law authorizes ITS "[t]o establish statewide technology policies, including but not limited to, preferred technology and security standards, and statewide policies, standards, programs, and services relating to the security of state government networks and Geographic Information Sytems (GIS), including the statewide coordination of geographically referenced critical infrastructure information."

Section 303 of the State Technology Law authorizes ITS to establish rules and regulations governing the use of electronic signatures and authentication.

4.2 Executive Order

Section 2 of Executive Order No. 117 provides the State Chief Information Officer, who also serves as Director of ITS (formerly known as the Office for Technology), the

[1] All references to Executive Order 117 refer to that which was originally issued by Governor George E. Pataki on January 28, 2002 and continued by Executive Order 5 issued by Governor Eliot Spitzer on January 1, 2007, Executive Order 9 issued by Governor David A. Patterson on June 18, 2008, Executive Order 2 issued by Governor Andrew M. Cuomo on January 1, 2011 and Executive Order 6 issued by Governor Kathy Hochul on October 8, 2021.

authority to oversee, direct and coordinate the establishment of information technology policies, protocols and standards for State government, including hardware, software, security and business re-engineering.

Executive Order No. 117 defines "'State government' to include "all State agencies, departments, offices, divisions, boards, bureaus, commissions and other entities over which the Governor has executive power and the State University of New York, City University of New York and all public benefit corporations the heads of which are appointed by the Governor; provided, however, that the powers and duties of the Chief Information Officer shall extend to business and administrative functions of such universities common to State government."

4.3 United States Code

Title 6, Section 665 of the United States Code and accompanying guidance outlines the process for registering an Internet GOV Domain and the naming conventions for such domains. The guidance authorizes the highest ranking information technology official to register and oversee an government entity's Internet GOV Domain. As the State's highest ranking information technology official, the State Chief information Officer is responsible for registering and overseeing State Entity's Internet GOV Domains.

5.0 Compliance

This policy shall take effect upon publication. Compliance is required with all enterprise policies and standards. ITS may amend its policies and standards at any time; compliance with amended policies and standards is required.

6.0 Definitions of Key Terms

Except for terms defined in this policy, all terms shall have the meanings found in http://www.its.ny.gov/glossary.

Term	Definition/Description
Chief Information Officer, State Chief Information Officer (CIO)	Director of the New York State Office of Information Technology Services (ITS)

7.0 Contact Information

Submit all inquiries and requests for future enhancements to the policy owner at:

Division of Legal Affairs
Reference: NYS-P08-002

NYS Office of Information Technology Services
State Capitol, ESP, P.O. Box 2062
Albany, NY 12220
Telephone: (518) 473-5115
Email: its.sm.dla@its.ny.gov

Statewide technology policies, standards, and guidelines may be found at the following website: https://its.ny.gov/policies

8.0 Revision History

This policy shall be reviewed at least once every two years to ensure relevancy.

Date	Description of Change	Reviewer
04/04/2002	Original policy release	OFT
01/05/2010	Revised to correct formatting and technical errors.	CIO/OFT
10/10/2017	Revised policy	Division of Legal Affairs
2/21/2019	Revised policy	Division of Legal Affairs
11/23/2021	Revised policy	Division of Legal Affairs
02/08/2024	Revised policy	Division of Legal Affairs

9.0 Related Documents

New York State Technology Law

Executive Order No 117

NYS-P09-003 Process for Establishing Enterprise Information Technology Policies, Standards, and Guidelines